


# Are Human Rights Universal or Merely a Construct of Western Culture?

A Critical Study of Universality, Power, and Political Selectivity

ABSTRACT

This essay argues that human rights are not fully universal in any complete sense. While they are presented as universal protections grounded in dignity and moral equality, their modern legal form and practical enforcement remain shaped by Western political history and global power. Through theoretical analysis and case studies from South Asia, the paper shows that human rights operate less as universal guarantees than as a normative language applied selectively in practice.

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# 1. Introduction

Human rights are often described as protections that belong to all people by virtue of their humanity. Yet the modern language of human rights did not emerge in a neutral historical space. It developed through natural law thinking, liberal political theory, and the postwar international order shaped by the Charter of the United Nations (1945) and the Universal Declaration of Human Rights (UDHR, 1948) (United Nations 1945; United Nations 1948). As a result, human rights occupy an uneasy position in international law and politics. They are presented as universal moral claims, but their institutional form remains closely tied to Western political history and to a global order still shaped by sovereignty, inequality, and strategic interest.

This essay argues that human rights are not fully universal in any complete sense. Although ideas such as dignity, freedom, and justice have moral force beyond the West, the modern human rights framework reflects a historically Western vocabulary and has been applied unevenly in practice. By examining the universalist defence of rights, the critique of Eurocentrism, the selective operation of enforcement under instruments such as the Vienna Declaration and Programme of Action (1993), and case studies from South Asia, the essay shows that human rights function less as universally protected realities than as a normative language shaped by power (Mutua 2002; Sen 1997; Donnelly 2013; United Nations Office of the High Commissioner for Human Rights 1993).

# 2. Human Rights as Universal Moral Ideals

The strongest defence of human rights begins with the claim that certain protections are owed to every person as a matter of moral status rather than cultural membership. On this view, rights do not depend on the approval of the state or the traditions of a particular society. They arise from the dignity of the human person and from the belief that there are limits to how any individual may be treated. This idea is expressed clearly in the UDHR (1948), which states that all human beings are born free and equal in dignity and rights (United Nations 1948, art. 1).

Universalism does not require all societies to share the same institutions or histories. Its central claim is that some protections, such as freedom from torture, arbitrary killing, slavery, and degrading treatment, are necessary because they address basic forms of human vulnerability. The Charter of the United Nations (1945) gave this moral idea an international legal setting by committing the post-war order to promoting respect for human rights and fundamental freedoms (United Nations 1945, art. 1(3)). The Vienna Declaration and Programme of Action (1993) later reaffirmed that all human rights are universal, indivisible, and interdependent (United Nations Office of the High Commissioner for Human Rights 1993). Donnelly and Sen therefore defend the idea that human rights have moral significance beyond any single civilisation, even if their legal form developed historically through institutions (Donnelly 2013; Sen 1997).

# 3. The Critique That Human Rights Are a Western Construct

A major critique of modern human rights is that, although they are presented as universal, their dominant language and institutional structure were shaped within a distinctly Western political tradition. The UDHR (1948) was drafted with input from representatives of different regions, yet its final form reflects a rights bearing model of the individual closely associated with liberal political thought and the modern relationship between the individual and the state (United Nations 1948). For this reason, critics argue that the human rights project often speaks in the name of humanity while still carrying the imprint of a particular historical and intellectual inheritance.

This critique is strongest when directed not simply at the moral aspiration of human rights, but at the claim that the current framework is culturally neutral. Mutua argues that modern human-rights discourse has frequently reproduced Eurocentric assumptions within unequal global power structures, allowing one political vocabulary to define how dignity, freedom, and justice are recognised and enforced (Mutua 2002). In this sense, the issue is not whether suffering matters outside the West, but whether a framework shaped by Western historical experience can genuinely claim to speak for all societies without reproducing the inequalities through which it was formed

## 3.1 Eurocentrism and the Language of rights

The Eurocentrism critique goes beyond the claim that human rights originated in the West. Its deeper concern is that the dominant language of rights has been shaped by European historical experience and then presented as universally authoritative. Modern human-rights discourse emphasises the autonomous individual, legal equality, and limits on state power, all of which reflect central features of liberal political thought. While these ideas may have broad moral appeal, critics argue that their global authority has often been assumed rather than collectively negotiated (Mutua 2002).

This concern also extends to the structure of international law. The post-war human-rights framework took legal form through institutions such as the United Nations and documents such as the UDHR (1948), which frame the human person primarily as an individual bearer of rights (United Nations 1948). Critics therefore argue that this model universalises a historically Western conception of political morality while giving less space to traditions that place greater emphasis on community or social obligation. Sen qualifies this position by arguing that values such as freedom and justice are not uniquely Western, but that does not remove the question of who has historically controlled the language through which those values are expressed (Sen 1997).

## 3.2 Uneven Applicability of Human Rights

Although human rights are expressed in international law as universal norms, their practical operation has long depended on state power, political interest, and institutional limits. The Charter of the United Nations (1945) committed the international order to promoting respect for human rights and fundamental freedoms, but it did so within a system that also preserved the sovereign equality of states and left enforcement dependent on political institutions rather than supranational authority (United Nations 1945, arts 1(3), 2(1)). This tension became especially visible during the Cold War, when human-rights language was drawn into wider struggles over legitimacy, ideology, and strategic influence.

The Helsinki Final Act (1975) is important here because it linked security, cooperation, and human rights within a single diplomatic framework. By treating respect for human rights and fundamental freedoms as a legitimate subject of international concern, it increased the political visibility of rights. At the same time, it showed how rights could become entangled in bloc rivalry, with competing powers highlighting different violations for strategic effect rather than applying standards consistently (Organization for Security and Co-operation in Europe 1975). The Vienna Declaration and Programme of Action (1993) later reaffirmed that all human rights are universal, indivisible, and interdependent, yet the need for such restatement itself reflects continuing disagreement and uneven practice (United Nations Office of the High Commissioner for Human Rights 1993). In this sense, the critique of human rights as a Western construct draws force not only from their language, but from their selective applicability in practice.

# 4. Case Studies

The arguments developed above become clearer when examined through specific case studies. While human rights are articulated in universal terms, their practical meaning is often shaped by political context, state priorities, and the uneven operation of institutions. The following examples therefore show how human-rights principles may be narrowed, manipulated, or applied selectively in practice.

## 4.1 Noakhali Massacres October 1946

The Noakhali massacres of October 1946 show how minority protection can collapse when communal mobilisation, weak governance, and political transition converge. Violence in Noakhali was directed largely against Hindu communities and involved killings, arson, looting, intimidation, forced displacement, and widespread insecurity (Encyclopaedia Britannica 2026a; Chatterji 2020). The importance of Noakhali lies not only in the brutality itself, but in the way it exposed the fragility of rights when local authority proved unable or unwilling to provide protection. In that sense, the episode reveals a central weakness in claims of universality: rights may exist in principle, yet their protection still depends on the political will and institutional capacity of the state.

## 4.2 The Exodus of Kashmiri Hindus in the 1990s

The exodus of Kashmiri Hindus in the early 1990s illustrates how minority insecurity can become acute when militancy, targeted violence, and state failure converge. As insurgency intensified in the Kashmir Valley, Kashmiri Pandits were exposed to threats, intimidation, and targeted killings that contributed to their mass flight from the region. Britannica notes that the persecution of Kashmiri Pandits during the rise of insurgency led to their large-scale departure from the Valley in 1990 (Encyclopaedia Britannica 2026b). Human Rights Watch similarly recorded that militant groups threatened, assaulted, and in some cases murdered Hindu residents, creating conditions under which many fled to refugee camps in Jammu and Delhi (Human Rights Watch 1993). The case therefore demonstrates that rights lose much of their meaning once a minority population no longer trusts the state to provide protection, security, and the conditions for return.

## 4.3 26/11 Mumbai Attacks

The Mumbai attacks of 26–29 November 2008 further expose the uneven and politically charged operation of human-rights protection in South Asia. The attacks deliberately targeted civilians at hotels, a railway station, a hospital, and a Jewish centre, killing 166 people and injuring hundreds, and therefore constituted a grave violation of the right to life and civilian security (Encyclopaedia Britannica 2026c; Human Rights Watch 2008). Yet the aftermath also revealed how state responses to mass violence may generate new rights concerns. Human Rights Watch later warned that legal measures adopted after the attacks risked abuse, weakened due-process protections, and revived patterns associated with earlier coercive counterterror laws (Human Rights Watch 2010). The

case is significant because it shows that even where the violation itself is unambiguous, accountability and legal response may still be shaped by political pressure and security logic.

## 5. Accountability as a Factor of State and Global Politics

If human rights are to have practical meaning, they must be supported by accountability. In formal terms, accountability requires more than recognising harm after the event. It includes prevention, protection, investigation, punishment, and remedy. In practice, however, accountability is rarely determined by legal principle alone. It is shaped by state capacity, political will, institutional weakness, and the wider pressures of domestic and international power. This is the central significance of the case studies discussed above. Rights may exist in principle, yet their effective protection often depends on whether governments are willing and able to act impartially, consistently, and with sufficient seriousness.

In Noakhali, the issue was not simply communal violence, but the failure of political authority to protect a vulnerable minority population at a moment of extreme instability. Chatterji argues that Gandhi himself pressed Suhrawardy on the point that the Bengal League ministry bore primary responsibility for restoring peace and order in Bengal, making the collapse of protection a political failure as much as a moral one (Chatterji 2020). In the case of the Kashmiri Pandit exodus, the state failed not only in protection but also in remedy. Narrative accounts of displacement repeatedly connect the exodus to inadequate security, neglect, and the loss of minority confidence in public institutions (Bhatia 2023; Panun Kashmir n.d.). Following 26/11, accountability assumed a different form. Public debate over the UPA government's response reflected concerns that justice had been shaped by strategic caution and diplomatic calculation rather than pursued only through an uncompromising framework of security and accountability (Varma 2019). Taken together, these examples show that accountability is never purely legal. It is also political.

## 6. Critical Evaluation: Moral Universality and Political Selectivity

The analysis in this essay suggests that human rights cannot be accepted as fully universal in either origin or operation. Although they are framed in the language of humanity, their modern legal expression emerged through a distinctly Western historical trajectory shaped by liberal individualism, post-war institutional design, and the political authority of states that dominated the international order. In that sense, the claim of universality often conceals a more particular inheritance. The issue is not simply that human rights were codified in Western-led institutions, but that this framework has continued to define which violations and forms of suffering are most readily recognised within international law and politics (Mutua 2002; United Nations 1945; United Nations 1948).

This does not mean that dignity, justice, or freedom are meaningless outside the West. Nor does it mean that all concern for suffering is culturally relative. Rather, it means that the current human-rights framework has too often treated one historical and political vocabulary as though it were universally authoritative. Sen is right to reject the claim that freedom and justice are uniquely Western, but that insight does not resolve the problem of institutional ownership, interpretive power, and selective enforcement within the existing human-rights order (Sen 1997). The case studies reinforce this point. Noakhali, the Kashmiri Pandit exodus, and the aftermath of 26/11 each show that rights are not protected equally simply because they are declared universal. For that reason, it is more convincing to conclude that human rights are not truly universal but remain historically Western in form and politically selective in operation.

## 7. Conclusion

The question of whether human rights are universal or merely a construct of Western culture cannot be answered by appealing only to their moral language. Although human rights are presented as protections belonging to all people, this essay has argued that their modern legal form, institutional development, and practical enforcement remain deeply shaped by Western political history and unequal global power. The case studies discussed here show that rights are not protected equally simply because they are declared universally. Their actual force continues to depend on political will, institutional capacity, and strategic interest. It is therefore more persuasive to conclude that human rights are not fully universal in any complete sense but operate as a normative language that claims universality while remaining selective in practice.

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